

Suyash Kraft And Papers Ltd. v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 11 January 2018 · WRIT - C No. 52889 of 2006 · **Writ dismissed as concluded by earlier Division Bench on identical clause 4.20 challenge.**

HEADNOTE

A consumer writ seeking to quash a demand and to declare U.P. Electricity Supply Code, 2005 clause 4.20(1)/4.20(i) ultra vires Electricity Act, 2003 section 47(4)–(5), with mandamus for a pre-payment meter and refund of security, was dismissed after counsel conceded that the controversy stood concluded by the Division Bench dismissal of the identical challenge in M/s Dev Prayag Paper Mill (Pvt.) Ltd. (Writ-C No. 30898 of 2016).

FACTUAL SUMMARY

Suyash Kraft And Papers Ltd. petitioned U.P. Power Corporation Ltd. to quash a 21 August 2006 demand notice and an 11 February 2005 letter, to declare clause 4.20(1) and 4.20(i) of the U.P. Electricity Supply Code, 2005 ultra vires section 47(4) and (5) of the Electricity Act, 2003, to compel supply through a pre-payment meter, and to refund or adjust security already paid with bank-rate interest. After a listing on 2 January 2018, the Division Bench heard the petition on 11 January 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

security deposit and pre-payment meter

HOLDING

The writ challenging clause 4.20(1) and 4.20(i) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(4) and (5) of the Electricity Act, 2003, and seeking quashing of a demand notice, supply through a pre-payment meter, and refund or adjustment of security, was dismissed after petitioner's counsel conceded that the controversy stood concluded by the Division Bench dismissal of the identical writ in M/s Dev Prayag Paper Mill (Pvt.) Ltd., Writ-C No. 30898 of 2016.

FLAG prayer cites clause 4.20(1) and 4.20(i); Court did not identify the sub-clause

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability A consumer writ seeking to quash a demand and to declare U.P. Electricity Supply Code, 2005 clause 4.20(1)/4.20(i) ultra vires Electricity Act, 2003 section 47(4)–(5), with mandamus for a pre-payment meter and refund of security

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) Ltd. v. State of U.P.</i> Writ-C No. 30898 of 2016				Referred